

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: August 17, 2026 at 1:30 pm

Rulings Posted: 8/14/26 at 4 pm

#	Case Name	Tentative
301	<i>Dy vs. Wun</i>	Before the Court is a motion by attorney Sabrina Green to be relieved as counsel for Francisco Dy. The motion generally complies with Rule 3.1362. However, the Proof of Service filed on 5/13/26 (ROA 114) is dated October 29, 2025 and does not reflect service of the instant motion, declaration and proposed order. Accordingly, if Ms. Green is able to submit a proper proof of service at, or in advance of, the hearing, the motion will be GRANTED. If Ms. Green fails to do so, the motion will be DENIED. If the motion is GRANTED, Ms. Green will then need to submit a completed proposed order (From

		MC-053) with all fields in the form completed, including the new hearing dates. The order will then become effective upon filing a proof of service showing service of the resulting order on the client. The court vacates the 8/17/26 CMC and sets a OSC re: dismissal for failure to file a FAC for 12/14/26 at 8:45am in Dept. C24. No first amended complaint was filed as ordered by the court on 11/17/25. At the next hearing, the court shall dismiss the case without prejudice pursuant to Code of Civil Procedure section 581(f) unless plaintiff files a first amended complaint. Green shall give notice.
303	<i>Gomez vs. General Motors LLC</i>	Before the Court is the Motion for Attorneys' Fees, etc., filed on 5/12/26 by Plaintiff Leslie Silvana Gomez (Plaintiff) against Defendant General Motors, LLC (GM). As a preliminary matter, GM claims here that the Motion is untimely under Rule 3.1702(b)(1) of the California Rules of Court. Had a dismissal been entered, that would be correct. (See <i>Hatlevig v. General Motors LLC</i> (2026) 118 Cal.App.5th 644, 649-650.) But under the circumstances here, the Court finds the Motion to be timely. On the merits, it is undisputed the parties' settlement agreement permits Plaintiff to recover reasonable attorney's fees, costs and expenses pursuant to Civil Code section 1794(d), in an amount to be determined on noticed motion. A court assessing such a claim is to use the lodestar as the start, to assess the reasonableness of the claim. (<i>Mikhaeilpoor v. BMW of North America</i> (2020) 48 Cal.App.5th 240, 246-247.) The party claiming fees has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and reasonable in amount.